

CHAPTER XVII.

Discovery.

Practice in
Bills for dis-
covery, the
same as
formerly.

There is one description of Bill in Equity, with respect to which the practice remains as it was before the new Orders; namely the Bill for discovery in aid of an action at law. Bills generally were for discovery and relief, and the discovery was enforced under the interrogatories which formed part of the Bill. The same object, where relief is sought in Equity, is now obtained by examining the defendant. But, where no relief is sought in the Court, but only a discovery of facts is required in order to aid the plaintiff in prosecuting an action at law, the practice must be as formerly. The Bill will be framed with interrogatories, and, unless the defendant demurs successfully to the Bill, it is apprehended, that, notwithstanding the foregoing rules, an answer would be enforced by attachment, and exceptions might be entertained for insufficiency. In a suit for discovery, the answer being in, the suit proceeds no further, and the general practice is that the plaintiff pays the costs.

The above remarks as to Attachment and Exceptions would seem to be contradictory to the express words of the rules; but it has been ascertained that the Bill for Discovery is to be in the old form, and, if so, then to hold that a *sufficient* answer cannot be *enforced*, would be to permit any defendant to such a Bill to set it at defiance and render it useless.

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